

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Leah Abeles	Team: Team # 4	CCRB Case #: 200514627	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/12/2005 3:14 AM, Wednesday, 07/13/2005 12:00 AM	Location of Incident: St. John's Place and Ralph Avenue	18 Mo. SOL 1/12/2007	Precinct: 77		
Date/Time CV Reported Tue, 12/06/2005 9:17 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/06/2005 9:17 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Granahan	26635	926899	077 PCT
2. An officer			
3. POM Joseph Collora	31165	903648	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Edgar Bourdon	30988	903075	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Granahan	Abuse: PO Matthew Granahan stopped the car in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM Matthew Granahan	Abuse: PO Matthew Granahan frisked § 87(2)(b)	B . Substantiated
C . An officer	Abuse: An officer frisked § 87(2)(b)	C . Officer(s) Unidentified
D . POM Joseph Collora	Abuse: PO Joseph Collora frisked § 87(2)(b)	D . Substantiated
E . POM Joseph Collora	Abuse: PO Joseph Collora searched § 87(2)(b)	E . Unfounded
F . POM Joseph Collora	Discourtesy: PO Joseph Collora spoke obscenely and/or rudely to § 87(2)(b), § 87(2)(b), and § 87(2)(b)	F . Unsubstantiated
G . POM Matthew Granahan	Abuse: PO Matthew Granahan searched the car in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	G . Substantiated
H . POM Joseph Collora	Abuse: PO Joseph Collora threatened § 87(2)(b) with the use of force.	H . Unsubstantiated
I . POM Joseph Collora	Off. Language: PO Joseph Collora made remarks to § 87(2)(b) based upon race.	I . Unfounded
J . POM Matthew Granahan	Force: PO Matthew Granahan struck § 87(2)(b) against a vehicle.	J . Unfounded

Synopsis

On 07/12/05, § 87(2)(b) was driving a vehicle owned by his cousin, § 87(2)(b) in which § 87(2)(b) and a third man, § 87(2)(b) were passengers. At approximately 3:14 AM, PO Matthew Granahan of the 77th Precinct Anti-Crime team pulled § 87(2)(b) over at the corner of Ralph Ave. and St. John's Pl. in Brooklyn (Allegation A). PO Joseph Collora and PO Edgar Bourdon were with PO Granahan at the time of this incident and all three officers approached the civilians' vehicle. After PO Granahan spoke briefly with § 87(2)(b) all three civilians were asked to step out of the vehicle. PO Granahan then frisked § 87(2)(b) (Allegation B). § 87(2)(b) and § 87(2)(b) also alleged that they were frisked (Allegations C and D) and § 87(2)(b) alleged that he was also searched (Allegation E). § 87(2)(b) further alleged that PO Collora then made several discourteous statements toward him, § 87(2)(b) and § 87(2)(b) which included calling them "stupid motherfuckers" and "assholes" (Allegation F).

The officers had all three civilians sit on the rear bumper of § 87(2)(b)'s vehicle, then PO Granahan searched at least a portion of the car (Allegation G). During the search, he located a loaded firearm in the vehicle's glove compartment. § 87(2)(b) alleged during his CCRB interview that PO Granahan planted the weapon in the vehicle. This allegation was later referred to IAB under log number 06-02911. § 87(2)(b) alleged that, once PO Granahan informed his partners of his discovery of the weapon, PO Collora told him and the other two civilians, "Put your fucking hands on the fucking car! Don't fucking move or I'll blow your fucking head off!" (Allegations F and H). § 87(2)(b) alleged that, at this time, PO Collora also called him, § 87(2)(b) and § 87(2)(b) "black bastards" (Allegation I). All three civilians were arrested § 87(2)(b) § 87(2)(b) § 87(2)(b) alleged that, in handcuffing him, PO Granahan slammed his head against the trunk of § 87(2)(b)'s vehicle (Allegation J), though he did not claim any injury from this action.

At the writing of this report, over a year had passed since the date of the above incident. This was due in large part because § 87(2)(b) did not report this incident to the CCRB until 12/06/05, nearly five months after the date of occurrence because, he stated, he was not aware that he could file a complaint until that time. At that point, an investigation into § 87(2)(b)'s complaint was begun. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

it is recommended that Allegation A be unsubstantiated. § 87(2)(g)

§ 87(2)(g) it is recommended that the frisks of § 87(2)(b) and § 87(2)(b) (Allegations B and D) be substantiated. § 87(2)(g)

§ 87(2)(g) it is recommended that Allegation C be closed as "Officer(s) Unidentified." § 87(2)(g)

§ 87(2)(g) it is recommended that Allegation E be closed as "Unfounded."

§ 87(2)(g) it is recommended that Allegations F and H be unsubstantiated. § 87(2)(g)

§ 87(2)(g) it is recommended that this allegation, Allegation G, be substantiated. § 87(2)(g)

It is therefore recommended that these allegations, Allegations I and J, be unfounded.

Summary of Complaint

§ 87(2)(b) a § 87(2)(b)-old black male, contacted the CCRB on 12/06/05 to file a complaint about an incident that had occurred on 07/12/05 (enc. 7A-B). § 87(2)(b) explained that he did not file the complaint sooner because he did not know he could do so. § 87(2)(b) was interviewed with the permission of his attorney on 01/26/06 at the Otis Bantem Correctional Center on Rikers Island, where he was incarcerated while awaiting trial for charges stemming from the incident in question (enc. 8A-D). § 87(2)(g)

At approximately 3:14 AM on 07/12/05, § 87(2)(b) was riding in the front passenger seat of his vehicle, a white Mitsubishi Gallant with tinted windows. His cousin, § 87(2)(b) was driving and a friend of § 87(2)(b) s named § 87(2)(b) was riding in the rear. The three men were coming from the Marcy Houses in Bedford-Stuyvesant in Brooklyn and were on their way to § 87(2)(b) s wife's house in Canarsie in Brooklyn, where they intended to pick up § 87(2)(b) s epileptic step-daughter so that they could take her to the hospital.

From Ralph Ave., § 87(2)(b) turned left onto St. John's Ave., but could not proceed any further, as an unmarked black Chevrolet Impala with dark tinted windows was stopped in the middle of the only lane in that direction. § 87(2)(b) was not sure if the vehicle's motor was running, but stated that he knew immediately that the vehicle was a police car. § 87(2)(b) stopped behind the unmarked vehicle and waited roughly a minute for it to move. However, it did not do so, so once oncoming traffic had passed, § 87(2)(b) proceeded into the opposite lane, passed the unmarked car, then moved back into the correct lane. The unmarked vehicle did not move, but ran its siren almost immediately after § 87(2)(b) had passed it.

§ 87(2)(b) stopped the car and four plainclothes police officers exited the unmarked vehicle. § 87(2)(b) identified one of these officers as PO Granahan and gave his shield number as 26635. § 87(2)(b) described this officer as a 5'9" white male in his early 40s who had red hair and a slim build. This officer was later identified as PO Matthew Granahan of the 77th Precinct Anti-Crime team. § 87(2)(b) described another of the officers as a 6'3", heavyset white male. This officer was later identified as PO Joseph Collora of the 77th Precinct Anti-Crime team. § 87(2)(b) was unable to provide descriptions of the remaining two officers, other than that both were white males. One of these officers was later identified as PO Edgar Bourdon of the 77th Precinct Anti-Crime team, but the last officer was never identified.

All four officers approached § 87(2)(b) s vehicle, with PO Granahan on the driver's side and the other officers surrounding the car. PO Granahan instructed § 87(2)(b) to turn off the engine and he complied, but left the keys in the ignition. PO Granahan then asked § 87(2)(b) for his driver's license. § 87(2)(b) explained that he did not have a license, but had a driver's permit and PO Granahan informed him that he was not allowed to drive after 9:00 PM. § 87(2)(b) attempted to hand his permit to PO Granahan and also volunteered that § 87(2)(b) was licensed. § 87(2)(b) then began looking for his license in his wallet.

Instead of taking § 87(2)(b) s permit, PO Granahan opened the driver's side door and told § 87(2)(b) to exit the vehicle, while grabbing his left upper arm. § 87(2)(b) stepped out of the vehicle while PO Granahan continued to hold him. PO Granahan then closed the driver's side door and had § 87(2)(b) stand facing the car with his palms against the vehicle near the rear driver's side door. § 87(2)(b) initially reported when he filed this complaint that PO Granahan searched § 87(2)(b). However, at the time of his interview, he stated that he believed PO Granahan merely frisked § 87(2)(b) but admitted that he did not actually see this happen. PO Granahan instructed § 87(2)(b) to sit face-forward on the vehicle's bumper and told him not to look back. § 87(2)(b) and, lastly, § 87(2)(b) were also physically escorted out of the vehicle and instructed to sit on the rear bumper of the car. § 87(2)(b) believed that § 87(2)(b) was also frisked once outside of the vehicle, though he did not see this happen, as this occurred before he had been escorted from the car. § 87(2)(b) reported that he was frisked upon exiting the vehicle, but could not remember which officer performed the frisk.

Once all three civilians were seated on the bumper, PO Bourdon, PO Collora, and the unidentified officer stood in front of them. Whenever any of the civilians attempted to look behind them, the officers told them to face forward. However, each of the three civilians succeeded in looking backward at least once. At the point that § 87(2)(b) looked behind him, he saw PO Granahan leaning his entire upper body through the rear door of the car. He could hear and feel PO Granahan moving items that were inside the trunk and believed that PO Granahan had accessed the trunk by folding the rear seat forward. None of the other three officers participated in the search the vehicle.

At one point during PO Granahan's search of the car, he yelled out, "Who locks their glove compartments these days?" About a minute later, PO Granahan began yelling repeatedly, "Nine-two!" At that moment, the other three officers grabbed § 87(2)(b) § 87(2)(b) and § 87(2)(b). PO Collora stated, "Put your fucking hands on the fucking car! Don't fucking move or I'll blow your fucking head off!" All three civilians complied by turning around and bending forward over the vehicle's trunk, at which time § 87(2)(b) observed that all four car doors stood open. § 87(2)(b) § 87(2)(b) and § 87(2)(b) were handcuffed. None of them resisted arrest. PO Collora held the three civilians in place against the vehicle by pressing his forearms against the backs of their necks and leaning his legs against the backs of their knees. PO Granahan stepped out of § 87(2)(b)'s vehicle and stated to the other officers, "We have a gun."

Additional unmarked vehicles then responded to the scene and the three civilians were transported to the 77th Precinct station house in separate cars. PO Granahan drove § 87(2)(b)'s vehicle from the scene. Once at the station house, § 87(2)(b) § 87(2)(b) and § 87(2)(b) asked the officers why they had stopped them. The officers initially told them that someone had "called 911 on us," then later stated that the stop had been a "random check."

§ 87(2)(b) was charged § 87(2)(b). At the time of his interview, he had been indicted and was awaiting trial, while all charges against § 87(2)(b) and § 87(2)(b) had been dismissed. § 87(2)(b) maintained that, at the time of the incident, he was not aware that there was a firearm in his vehicle. He stated that the weapon does not belong to him and that he did not know how it came to be inside his vehicle. § 87(2)(b) noted that he is on parole and that, at any given time, his parole officer may search his vehicle or administer a drug test to him. For this reason, § 87(2)(b) does not use drugs and does not allow passengers to smoke marijuana in his vehicle.

Results of Investigation

Civilian Accounts

§ 87(2)(b)

§ 87(2)(b), a § 87(2)(b) black male, was interviewed by the CCRB on 01/26/06 at the Eric M. Taylor Center on Rikers Island, where he was incarcerated on charges unrelated to those stemming from his 07/12/05 arrest (enc. 11A-D). § 87(2)(g)

§ 87(2)(b) could not recall the exact time of occurrence, but reported that the incident in question occurred sometime between 1:00 AM and 2:00 AM on 07/12/05. At that time, he, § 87(2)(b) and § 87(2)(b) were driving § 87(2)(b)'s white vehicle from the hospital, where they had been visiting § 87(2)(b)'s pregnant wife. § 87(2)(b) has known § 87(2)(b) all his life, as they used to live in the same building. However, at the time he was interviewed, he was unable to independently recall § 87(2)(b)'s first name.

According to § 87(2)(b) he and the § 87(2) stopped behind the officers' unmarked vehicle at a red light at St. John's Ave. and Utica Ave. There was a bus stop sign located on the opposite side of the street. When the traffic light turned green, § 87(2)(b) who was driving, turned left, after which point the officers pulled them over. § 87(2)(b) reported that there were either three or four officers inside the unmarked car, though all of them exited upon stopping § 87(2)(b)'s vehicle. § 87(2)(b) provided physical descriptions of three officers, which matched the physical characteristics of PO Edgar Bourdon, PO Joseph Collora, and PO Matthew Granahan.

When PO Granahan approached the driver's side window, he told the civilians that they had been stopped because they had been parked in front of a bus stop sign and because he and the other officers had smelled marijuana coming from their vehicle. § 87(2)(b) admitted that he smokes marijuana, though he stated that neither he, § 87(2)(b) nor § 87(2)(b) had been smoking marijuana in their vehicle at the time of this incident. § 87(2)(b) noted that the § 87(2) would not allow him to smoke marijuana in the car, as they are both subject to drug tests as part of their parole, and that the last time he smoked marijuana was about twelve hours prior to the incident. PO Granahan later changed his story, stating that an individual in the Kingsboro Houses had called them and reported that the men in a white car had guns in their vehicle.

Once § 87(2)(b) was escorted to the rear of the vehicle, PO Collora frisked him. When asked if PO Collora also searched § 87(2)(b)'s pockets, § 87(2)(b) stated that he believed PO Collora had done so, but did not explicate why he thought this. The officers next removed § 87(2)(b) and then § 87(2)(b) from the vehicle. PO Collora frisked both of them at the rear of the car and searched both men's pockets, emptying the

contents of the pockets onto the hood of the car. Afterward, PO Collora made statements such as, “Stupid motherfuckers, you think you’re dumb. You’re assholes. You’re going down.”

At no point did any of the civilians give the officers permission to search the vehicle. However, § 87(2)(b) watched through the rear window of the car as PO Granahan used keys to the vehicle to open the locked glove compartment. Although § 87(2)(b) was aware that PO Granahan claimed he had found a firearm in the vehicle, he denied that he, § 87(2)(b) or § 87(2)(b) was carrying a gun in the car and believed that the officers had planted the weapon. This allegation was later referred to IAB.

§ 87(2)(b) was unable to recall all of the officers’ actions following PO Granahan’s recovery of the firearm. He stated that all of the officers began cursing and screaming, though he could only recall statements that PO Collora made. Some of the statements PO Collora made were, “I’m going to fuck you up,” and “You little black bastards. What, do you think I’m dumb?” § 87(2)(b) was asked if he heard any officer threaten to blow anyone’s head off, to which he stated that he thought PO Collora made a statement to § 87(2)(b) or § 87(2)(b) to the effect of, “If you turn around, I’m going to blow your head off.”

§ 87(2)(b) also alleged that PO Granahan used physical force against him, stating that PO Granahan twisted his left hand behind his back, then grabbed the back of his shirt and slammed his head against the trunk of the vehicle. The right side of § 87(2)(b)’s face struck the vehicle, though he did not suffer any injuries.

§ 87(2)(b)

§ 87(2)(b)’s cousin, § 87(2)(b) is a § 87(2)(b) black male. § 87(2)(b) was contacted by phone on 12/29/05 (enc. 13) § 87(2)(g)

§ 87(2)(b) reported that at the time of the incident, he, § 87(2)(b) and § 87(2)(b)’s friend, § 87(2)(b) were on their way to the hospital, after § 87(2)(b) had received a phone call informing him that his wife was having pregnancy complications. Because § 87(2)(b) was tired from working all day, § 87(2)(b) volunteered to drive and § 87(2)(b) then fell asleep in the passenger seat.

En route to the hospital, § 87(2)(b) stopped at a store for soda and a pack of cigarettes, at which time he observed the unmarked vehicle that it was later determined was driven by PO Matthew Granahan. After making his purchases, § 87(2)(b) got back into § 87(2)(b)’s vehicle and continued driving. The unmarked vehicle followed and pulled § 87(2)(b) over two blocks later.

After PO Granahan had asked § 87(2)(b) for his license and registration, he also asked § 87(2)(b) if he had any weapons with him. § 87(2)(b) stated that he did not and asked PO Granahan why he had stopped him. PO Granahan stated that he had smelled marijuana emanating from § 87(2)(b)’s vehicle. At the time he was contacted, § 87(2)(b) denied that either § 87(2)(b) or § 87(2)(b) were smoking marijuana at the time of the incident and maintained that he does not smoke marijuana because he is on parole. § 87(2)(b) submitted to a urinalysis following the incident and tested negative for drug use.

PO Granahan asked § 87(2)(b) to step out of the vehicle so that he could search him for weapons and, when § 87(2)(b) complied, PO Granahan frisked him. Both § 87(2)(b) and § 87(2)(b) were also asked to step out of the vehicle and were also frisked. § 87(2)(b) concurred with § 87(2)(b)’s testimony that the officers had all three civilians sit on the bumper of the vehicle, but did not allege that any of the officers searched the car during this time. However, he reported that PO Granahan suddenly repeatedly shouted, “Nine-three!” after which all three civilians were arrested.

§ 87(2)(b) later learned that the officers had allegedly found a firearm in the vehicle’s glove compartment. However, he testified before a grand jury that he did not know the weapon was there at the time of the incident.

At the time § 87(2)(b) was initially contacted, an appointment was scheduled to interview him in person on 01/03/06. However, § 87(2)(b) failed to appear at the CCRB at the appointed time. The interview was rescheduled for 01/04/06, but again failed to appear. When § 87(2)(b) missed a third appointment that had been scheduled for 02/13/06, a call was placed to his cell phone the same day. However, at that time, his phone was no longer in service. Because it was unclear which of two apartments in which § 87(2)(b) lived, letters were mailed to one apartment on 02/13/06 and 02/21/06 and to the other on 02/21/06 and 03/03/06. While none of the letters were returned by the Post Office, the CCRB received no response from § 87(2)(b). On 03/08/06, both apartments were visited in person. The resident of one apartment stated that § 87(2)(b) did not reside at that location. There was no answer at the second apartment, but a contact letter

was left under the door. However, this still elicited no response from § 87(2)(b). Thus, he was never formally interviewed in relation to this case.

Officer Accounts

PO Matthew Granahan of the 77th Precinct is a § 87(2)(b) white male. He was interviewed by the CCRB on 03/09/06 (enc. 19A-C). PO Granahan reported that on 07/12/05, he was assigned to the 77th Precinct Anti-Crime squad and was working with only two other police officers, PO Joseph Collora and PO Edgar Bourdon. PO Collora, a § 87(2)(b) white male, is still assigned to the 77th Precinct, while PO Bourdon, a § 87(2)(b) Hispanic male, has since been reassigned to the 77th Precinct detective squad. PO Collora was interviewed by the CCRB on 03/30/06 (enc. 21A-B) and PO Bourdon was interviewed on 05/15/06 (enc. 23A-C). § 87(2)(g)

Only PO Granahan and PO Collora prepared memo book entries concerning this incident and then, recorded only the initial vehicle stop and subsequent arrests (enc. 18A-C, 20A-B). Thus, the following constitutes a summary of their CCRB testimony, as well as additional statements PO Granahan made in paperwork he later prepared concerning this incident. Any discrepancies between the statements summarized have been noted.

On 07/12/05, PO Granahan, PO Collora, and PO Bourdon were assigned to an unmarked vehicle, which PO Granahan was driving and described as a black Crown Victoria. All three officers were dressed in plainclothes and all three reported that they were the only officers in their vehicle. At approximately 3:14 AM, the officers were driving southbound on Ralph Ave. when a vehicle that had been stopped in a bus stop suddenly pulled out in front of them near the intersection of St. John's Pl. PO Granahan reported that the vehicle crossed a double-yellow line and cut him off, pulling in front of his vehicle with only five to seven feet left to spare. Although PO Granahan did not report it, PO Collora testified that the vehicle's pulling so closely in front of the officers' car caused PO Granahan to swerve into the lane for oncoming traffic. PO Granahan and PO Collora reported that PO Granahan decided to pull the vehicle over, while PO Bourdon reported that the decision was a collective one between the three officers. However, he stated that he and his partners did not actually discuss whether to pull the vehicle over.

PO Granahan ran the lights and siren and the vehicle stopped immediately. PO Granahan, PO Collora, and PO Bourdon then exited their car and approached the vehicle. PO Granahan approached the driver's window, while PO Bourdon approached the passenger side and PO Collora stayed to the vehicle's rear. There were three civilians inside the vehicle. The driver was later identified as § 87(2)(b) the front passenger as § 87(2)(b) and the passenger in the backseat as § 87(2)(b). PO Collora and PO Bourdon reported that they did not hear the conversation that ensued between PO Granahan and § 87(2)(b) so only PO Granahan testified to the content of the discussion. PO Granahan explained to § 87(2)(b) that he had stopped him because he had pulled out in front of the officers' vehicle. He then requested § 87(2)(b)'s license, registration, and proof of insurance. At this time, PO Granahan noticed the smell of marijuana emanating from the vehicle. PO Granahan did not discuss this observation with his partners and, at the time of his interview, did not believe that he discussed marijuana with § 87(2)(b) on the scene.

PO Granahan reported that § 87(2)(b) immediately provided a New York State driver's permit upon request, though PO Collora and PO Bourdon did not see § 87(2)(b) provide any type of permit or license to PO Granahan at any point. PO Granahan asked him for the rest of his paperwork and § 87(2)(b) then stated that the registration and proof of insurance were in the vehicle somewhere, but that he did not know where, as the vehicle did not belong to him. PO Granahan described § 87(2)(b)'s demeanor during this conversation as "nervous" and "fidgety." He was doing things such as moving around in his seat and adjusting the seat. PO Collora described § 87(2)(b) merely as "cooperative," and did not corroborate PO Granahan's description of his demeanor, while PO Bourdon was unable to observe § 87(2)(b)'s demeanor from where he stood.

PO Granahan reported that, about twenty to thirty seconds after approaching the vehicle, he asked § 87(2)(b) to step out of the car. PO Collora estimated that this occurred a "couple of minutes" into the stop. PO Granahan explained that he did this due to his detection of the odor of marijuana. However, PO Bourdon reported that PO Granahan later told him that he had § 87(2)(b) step out of the car because he did not have a driver's license or the vehicle's paperwork. Both PO Granahan and PO Bourdon testified that § 87(2)(b) complied with PO Granahan's request and that PO Granahan then asked him again for the vehicle's paperwork. § 87(2)(b) once again stated that the vehicle did not belong to him, but that the paperwork was somewhere inside the car. Although PO Collora and PO Bourdon did not believe that § 87(2)(b) was frisked or searched at this time, PO Granahan admitted that he frisked § 87(2)(b) for weapons,

though he reported that he did not have any reason to suspect that § 87(2)(b) was carrying a weapon. He did not search § 87(2)(b) at this time and did not find any contraband on § 87(2)(b)'s person in frisking him.

After frisking § 87(2)(b) PO Granahan had him sit on the vehicle's rear bumper. PO Collora, who was still standing at the rear of the vehicle at this time, stated that, as § 87(2)(b) approached him, he detected the odor of marijuana. However, he could not tell if § 87(2)(b) was under the influence of marijuana and neither he nor his partners took any steps to determine if there was indeed marijuana in the vehicle. PO Collora testified that he did not ask any of the civilians any questions about marijuana and did not hear any of his partners question the civilians on this topic, but stated that he might have informed the civilians while on the scene that he had detected the odor.

§ 87(2)(g) PO Bourdon stated that he never smelled marijuana while on the scene. He also stated that neither PO Granahan nor PO Collora ever indicated to him that either of them had detected the odor of marijuana.

PO Granahan testified that, after having § 87(2)(b) move to the rear of the vehicle, he then asked PO Bourdon to escort § 87(2)(b) from the vehicle. However, PO Collora reported that it was a mutual decision between the three officers to remove both § 87(2)(b) and § 87(2)(b) from the car. PO Bourdon escorted § 87(2)(b) from the vehicle, while PO Granahan asked § 87(2)(b) to step outside. PO Granahan explained that he decided to have § 87(2)(b) and § 87(2)(b) exit the vehicle because he wanted "to see what condition they were in," meaning that he planned to determine if they were intoxicated or under the influence of marijuana. PO Granahan further reported that he had all three civilians exit the car as a "safety issue" since he planned to retrieve the vehicle's paperwork from inside the car. He stated that he did not want any of the civilians to retrieve the documents or to be inside the vehicle while he was collecting the paperwork. Both § 87(2)(b) and § 87(2)(b) were compliant with the officers' instructions to step out of the car. Although PO Granahan did not report this, PO Collora testified that § 87(2)(b) was immediately irate upon stepping out and loudly asked the officers, "Why are you doing this?" Both PO Collora and PO Bourdon testified that neither § 87(2)(b) nor § 87(2)(b) was frisked or searched, though PO Granahan stated that he did not know whether either of these two civilians was frisked or searched. Both were directed to sit on the bumper with § 87(2)(b).

PO Granahan then proceeded to the front of the car. He stated that he did this in order to look for the vehicle's registration in the glove compartment and explained that he decided to look for the registration in this location because this is a known location in which vehicle registrations are kept. PO Collora provided corroborative testimony to this fact, stating that PO Granahan informed him later that day that he opened the glove compartment to look for § 87(2)(b)'s driver's license and the vehicle's registration. PO Granahan stated that he did not discuss with the civilians that he would be accessing the glove compartment before doing so and neither PO Collora nor PO Bourdon aided him in retrieving the documents from the vehicle. PO Granahan opened the glove compartment, which he stated was unlocked. PO Granahan testified that, inside the glove compartment, he found a .45 caliber Hi-Point firearm in plain view. PO Collora reported seeing PO Granahan remove an object from the glove compartment, but stated that he was unable to tell what the object was. However, when § 87(2)(b) saw the item, he moved sideways off of the vehicle. PO Collora then pushed § 87(2)(b) back against the vehicle and held him there.

According to PO Collora, he then saw that the object PO Granahan had retrieved from the vehicle was a firearm, so handcuffed § 87(2)(b). However, PO Granahan stated that he yelled out, "Ninety-two!" indicating that PO Bourdon and PO Collora, both of whom were standing toward the rear of the vehicle, should place all three civilians under arrest. PO Granahan further stated that it was after this point that he retrieved the weapon, as well as the vehicle's registration, from the glove compartment. The property voucher PO Granahan later prepared (enc. 17) indicates that the weapon found was a .45 caliber Hi-Point pistol. There was one round found in the chamber of weapon, one black magazine found inside the firearm, and seven rounds found inside the magazine.

According to PO Collora, PO Granahan did not search any other area of the vehicle other than the glove compartment. PO Bourdon did not know what area of the car PO Granahan searched, but stated that PO Granahan initially entered the vehicle from the driver's side. Neither PO Collora nor PO Bourdon ever saw PO Granahan enter through the vehicle's rear doors.

PO Granahan stated that he did not assist in effecting the civilians' arrest, though PO Bourdon stated that PO Granahan assisted in handcuffing the three civilians. All three officers denied using profanity on the scene. None of them stated to the civilians, "Don't fucking move or I'll blow your fucking head off!" or called the civilians "little black bastards."

Once § 87(2)(b) § 87(2)(b) and § 87(2)(b) were handcuffed, the officers called for additional units to respond to the scene. The civilians were then placed in a position such that they were bent forward over the trunk of the vehicle. However, none of the officers ever slammed § 87(2)(b)'s head against the vehicle at any point.

Once additional units arrived on the scene, the three civilians were transported to the 77th Precinct station house. PO Granahan believed that it was not until after he returned to the station house that he learned from either § 87(2)(b) or § 87(2)(b) that the vehicle § 87(2)(b) had been driving belonged to § 87(2)(b). He also did not notice until this time that the car was registered to § 87(2)(b).

PO Granahan later prepared arrest reports pertaining to the arrests of each of the three civilians (enc. 14A-B, 15A-B, 16). All three civilians were charged § 87(2)(b). § 87(2)(b) was also charged § 87(2)(b).

PO Granahan did not include any information in the arrest reports or in the property voucher he prepared concerning the manner in which he encountered § 87(2)(b) § 87(2)(b) and § 87(2)(b) or how the firearm was recovered.

Police Records

A Sprint printout regarding this incident shows that a call was first placed over Department radio at 3:14 AM on 07/12/05 (enc. 24). The call was placed as a 10-68U2, or “see complaint regarding MOS [member of service] outside.” Two minutes later, the 77th Precinct Anti-Crime unit radioed that they had arrived at the location, which was given as St. John’s Pl. and Ralph Ave. Roll call from the 77th Precinct shows only PO Granahan, PO Collora, and PO Bourdon assigned to Anti-Crime (enc. 25A-H). There were no Anti-Crime supervisors working on 07/12/05. At 3:17 AM, the 73rd Precinct’s Sector C arrived on the scene and only a minute later, it was reported that two “cage cars” were needed to respond to the location. At the same time, the Anti-Crime unit reported that it had made three arrests at the scene.

Court Decision

On 06/26/06, § 87(2)(b) provided the CCRB with a copy of a decision rendered by the Supreme Court of the State of New York in regard to the criminal charges brought against him as a result of his 07/12/05 arrest (enc. 26A-H). § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Status and Disposition of Criminal Charges

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Potential Civil Litigation

On 05/16/06, § 87(2)(b) of the New York City Comptroller's Office was contacted with regard to this case. § 87(2)(b) was unable to locate any notices of claim filed by § 87(2)(b), § 87(2)(b), or § 87(2)(b).

Criminal Conviction History of Civilian Witnesses

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

CCRB Complaint History of Officers

PO Matthew Granahan, who has been a police officer for five years, has one substantiated complaint on his record (enc. 2). PO Granahan was given instructions after he was cited for issuing a retaliatory summons on 07/17/04 (CCRB case number 200409370). PO Joseph Collora, a twelve-year veteran of the NYPD, has also received discipline for one CCRB allegation that was substantiated against

him (enc. 3A-C). PO Collora was found guilty at trial for using discourteous language toward a civilian on 03/06/03 and incurred a loss of five vacation days (CCRB case number 200301705). PO Edgar Bourdon, who, like PO Collora, has been with the NYPD for twelve years, has never had a CCRB allegation substantiated against him (enc. 4).

Conclusions and Recommendations

Officer Identification

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Undisputed Facts

It is undisputed that at approximately 3:14 AM on 07/12/05, a vehicle driven by § 87(2)(b) but belonging to § 87(2)(b) and in which § 87(2)(b) and § 87(2)(b) were passengers, was stopped by an unmarked vehicle driven by 77th Precinct Anti-Crime officers. PO Matthew Granahan was driving the unmarked vehicle and at least two other officers, PO Joseph Collora and PO Edgar Bourdon, were passengers. All three officers exited their vehicle once the civilians' car was stopped. PO Granahan approached the driver's side of the vehicle, while PO Bourdon approached the passenger side and PO Collora approached the rear. PO Granahan then spoke with § 87(2)(b) during which conversation he requested § 87(2)(b)'s driver's license and the vehicle's registration and proof of insurance. § 87(2)(g)

However, it is undisputed that the officers had all three civilians step out of the vehicle and then sit on the rear bumper. While the civilians were at this location, PO Granahan conducted a search of their vehicle. § 87(2)(g)

The incident resulted in the arrests of all three civilians, each of whom was charged § 87(2)(b) amongst other charges.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

Credibility Analysis

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
§ 87(2)(b) never provided a sworn statement to the CCRB.
§ 87(2)(b) did provide a sworn statement; § 87(2)(g)
§ 87(2)(b) made more than one allegation to which no other witness testified and also alleged that PO Granahan planted the weapon found in the glove compartment of § 87(2)(b)'s vehicle. While this allegation was not investigated by the CCRB, even § 87(2)(b) who claimed that the firearm did not belong to him and that he did not know how it came to be inside his vehicle, did not make this allegation.

§ 87(2)(g)
§ 87(2)(g)
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§ 87(2)(g)

§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

PO Collora and PO Bourdon § 87(2)(g) denied that any of the civilians were frisked prior to their arrests, even though PO Granahan admitted frisking § 87(2)(b) immediately after asking him to step out of the vehicle. § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation A: Abuse of Authority: PO Matthew Granahan stopped the car in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

According to each of the officers interviewed in relation to this case, PO Matthew Granahan pulled over a vehicle driven by § 87(2)(b) after § 87(2)(b) unsafely pulled away from the bus stop in which he was parked, cutting off the officers' vehicle. § 87(2)(b) § 87(2)(g) testified that PO Granahan informed the civilians, upon approaching the vehicle, that he had stopped them because they had been parked in a bus stop. § 87(2)(b)'s account § 87(2)(g) stated that he was pulled over after leaving a store at which he had stopped.

§ 87(2)(g) § 87(2)(b) and § 87(2)(b) testified that they first observed the officers' vehicle in front of their own. § 87(2)(b) stated that § 87(2)(b) was pulled over when he attempted to pass the officers' car on the left. § 87(2)(b) testified that § 87(2)(b) was pulled over after turning left.

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
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§ 87(2)(g)

It is therefore recommended that Allegation A be unsubstantiated.

Allegation B: Abuse of Authority: PO Matthew Granahan frisked § 87(2)(b)

§ 87(2)(g)

According to Barry Kamins in his New York Search and Seizure, even if an officer legally stops a vehicle for a traffic infraction, he “is not permitted to *frisk* the driver or other occupants of a car unless he has a reasonable basis for suspecting that the individual is armed and may be dangerous” (enc. 1G). PO Granahan testified § 87(2)(g) during his CCRB interview that he had no reason to suspect that § 87(2)(b) was armed when he frisked him. § 87(2)(g)

it is recommended that Allegation B be substantiated.

Allegation C: Abuse of Authority: An officer frisked § 87(2)(b)

In regard to the frisk of § 87(2)(b) § 87(2)(b) stated during his interview that he could not recall which officer frisked him. Although § 87(2)(b) testified that it was PO Collora who frisked § 87(2)(b) PO Collora did not admit to this action. Furthermore, the officers in this case testified that it was PO Bourdon who escorted § 87(2)(b) from the vehicle. Yet, he, too, denied frisking § 87(2)(b) § 87(2)(g) it is recommended that Allegation C be closed as “Officer(s) Unidentified.”

Allegation D: Abuse of Authority: PO Joseph Collora frisked § 87(2)(b)

Allegation E: Abuse of Authority: PO Joseph Collora searched § 87(2)(b)

§ 87(2)(g)

PO Granahan stated that he did not know whether PO Collora frisked or searched § 87(2)(b) § 87(2)(g)

As discussed above, an officer may frisk the occupant of a vehicle only if he reasonably suspects that person to be armed or dangerous. § 87(2)(g)

so it is recommended that Allegation D be substantiated. § 87(2)(g)

it is recommended that Allegation E be unfounded.

Allegation F: Discourtesy: PO Joseph Collora spoke obscenely and/or rudely to § 87(2)(b) § 87(2)(b) and § 87(2)(b)

Allegation H: Abuse of Authority: PO Joseph Collora threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that, after PO Matthew Granahan informed his partners that he had discovered a firearm in § 87(2)(b)'s glove compartment, PO Joseph Collora told him, "Put your fucking hands on the fucking car! Don't fucking move or I'll blow your fucking head off!" § 87(2)(g)

§ 87(2)(b) alleged that PO Collora made numerous discourteous statements, including calling the civilians "motherfuckers" and "assholes" and threatening to "fuck [them] up." § 87(2)(g)

§ 87(2)(g)

J.

it is recommended that both Allegation F and Allegation H be unsubstantiated.

Allegation G: Abuse of Authority: PO Matthew Granahan searched the car in which § 87(2)(b), and § 87(2)(b) were occupants. § 87(2)(b)

§ 87(2)(g) PO Granahan reported that, in speaking with § 87(2)(b) while § 87(2)(b) was still inside the vehicle, he detected the odor of marijuana emanating from the car. § 87(2)(g)

§ 87(2)(g) PO Granahan did not give his alleged detection of the odor of marijuana as grounds for his search. He claimed that he entered the vehicle only to retrieve § 87(2)(b)'s license and the vehicle's registration from the car's glove compartment. According to New York Search & Seizure, "a police officer can conduct a limited search of a vehicle when there is a question about the ownership of the vehicle and the driver cannot satisfy the officer's questions" (enc. 1A-V). Mr. Kamins recounts the case of *People v. Branigan*, in which the driver of a vehicle was unable to produce the registration for the car he was driving. After the officer ordered him out of the vehicle, the officer asked the driver where the vehicle registration was and the driver pointed to the front seat of the car. Mr. Kamins concludes that "when the defendant indicated the *general* location of the papers, the officer was justified in looking for the document in the area specified by the defendant."

§ 87(2)(g) PO Granahan admitted that he targeted the vehicle's glove compartment during the search only because this is a common place in which vehicle registrations are kept, not because any of the three civilians had indicated that the registration to this particular vehicle was kept in that location. § 87(2)(g)

§ 87(2)(g)

It therefore recommended that Allegation G be substantiated.

Allegation I: Offensive Language: PO Joseph Collora made remarks to § 87(2)(b) based upon race.

Allegation J: Force: PO Matthew Granahan struck § 87(2)(b) against a vehicle.

§ 87(2)(g)

It is thus recommended

Investigator: _____ Date: _____

Date: _____

Supervisor: _____ Date: _____

Date: _____

Reviewed by: _____ Date: _____

Date: _____

Reviewed by: _____ Date: _____

Date: _____